

Petitioner v. Purvanchal Vidyut Vitran Nigam Ltd. and Another

High Court of Judicature at Allahabad · Division Bench · 7 November 2025 · WRIT - C No. 38566 of 2025 · **Writ disposed; EE to decide cl. 4.38 PD representation.**

HEADNOTE

Consumer whose 3 kW supply was temporarily disconnected and whose meter was removed while billing continued sought mandamus for permanent disconnection from the date of temporary disconnection under Clause 4.38(i)(b) of the U.P. Electricity Supply Code, 2005. The Division Bench did not decide that duty and disposed of the writ, permitting a representation to the Executive Engineer to be considered and decided by a reasoned speaking order after notice and hearing, preferably within one month.

FACTUAL SUMMARY

The petitioner obtained a 3 kW connection (No. 3371798735) from the Executive Engineer, EDD-1, PuVVNL, Allahabad on 17 January 2024 and paid the first bill of Rs.881 on 19 March 2024. In April 2024 the supply was temporarily disconnected without reasons and the meter was removed, but billing continued, leaving Rs.20,503.37 outstanding as on 25 October 2025. The petitioner sought mandamus for permanent disconnection from the date of temporary disconnection under Clause 4.38(i)(b) of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.38

permanent disconnection after temporary disconnection

HOLDING

On a prayer for mandamus directing permanent disconnection from the date of temporary disconnection under Clause 4.38(i)(b), the Court did not decide whether the licensee is bound to permanently disconnect after six months of temporary disconnection. It disposed of the writ by permitting the petitioner to make a representation to the Executive Engineer, EDD-1, PuVVNL, Allahabad, who shall consider and decide it by a reasoned speaking order after notice and hearing, preferably within one month. ¶ 5

PRINCIPLE TAGS

clause-4.37-4.38-licensee-empowered-to-permanently-disconnect The petitioner invoked Clause 4.38(i)(b) as obliging the licensee to convert a six-month-old temporary disconnection into a permanent disconnection; the Court remitted that claim to the Executive Engineer without deciding the duty. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.38(I)(B) OBLIGES THE LICENSEE TO PERMANENTLY DISCONNECT AFTER SIX MONTHS OF TEMPORARY DISCONNECTION, AND WHETHER BILLING MAY CONTINUE AFTER METER REMOVAL

¶ 4-5